

HOUSE No. 4313

The Commonwealth of Massachusetts

PRESENTED BY:

Donald R. Berthiaume, Jr. and Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing "print-free" digital legal notices for the town of North Brookfield.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>7/16/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>7/16/2025</i>

HOUSE No. 4313

By Representative Berthiaume of Spencer and Senator Durant, a joint petition (accompanied by bill, House, No. 4313) of Donald R. Berthiaume, Jr., and Peter J. Durant (by vote of the town) for legislation to authorize digital legal notices for the town of North Brookfield. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing "print-free" digital legal notices for the town of North Brookfield.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Purpose.

2 The purpose of this act is to allow the Town of North Brookfield, including the Board of
3 Selectmen, the School Committee, the Planning Board and all other elected or appointed boards
4 and committees, or municipal officials, to satisfy the legal notice requirements entirely by digital
5 publications in light of the lack of an available adequate print newspaper in the community.

6 SECTION 2. Process.

7 Where legal notice in a newspaper or a newspaper of general circulation is required by
8 statute, bylaw, or judicial order, alternative means of posting such notice, as specified in section
9 3 of this Act, may be used if approved by a majority vote of the public body or at the discretion
10 of the municipal official legally required to post such notice.

11 SECTION 3. Means of Legal Notice Publication.

Notwithstanding Massachusetts General Law c. 4 § 13(b) and subject to Section 2 of this Act, whenever legal notice in a newspaper or newspaper of general circulation is required by statute, bylaw, or judicial order, such notice requirement shall be satisfied by posting notice in one or more of the following places:

(A) A print newspaper of local or general circulation;

(B) A newspaper's website;

(C) Websites reporting local news and opinion which satisfy the criteria for digital publication as set forth in

G.L. c. 4 § 13(b);

(D) A statewide website that may be maintained as a repository for such notices; or

(E) A townwide website that may be maintained as a repository for such notices.

SECTION 4. Legal Requirements.

Nothing set forth in this Act shall be construed to alter or amend the timing requirements of the publication of legal notices set forth in the Massachusetts General Laws, bylaw, or judicial order.

SECTION 5.

This act shall take effect upon its passage.